



CHAPTER lxxix.

An Act to confirm an agreement between the Cattewater Commissioners and the President of the Air Council in relation to the acquisition of certain lands in the county of Devon and for purposes in connection therewith.

A.D. 1925.

[7th August 1925.]

WHEREAS an agreement (in this Act referred to as “the agreement”) was made on the thirteenth day of November, nineteen hundred and twenty-four, between the Cattewater Commissioners (in this Act referred to as “the Commissioners”) of the one part, and the President of the Air Council (in this Act referred to as “the President”) of the other part, with respect to the purchase by the President from the Commissioners of certain lands in the parish of Plymstock in the county of Devon, which agreement is set out in the schedule to this Act:

And whereas the agreement is subject to confirmation by Parliament:

Be it therefore enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The agreement is hereby confirmed and shall have effect as if enacted in this Act, and the President and the Commissioners shall have and be deemed to have had all such powers as may be necessary in order to give effect to the agreement.

Confirma-
tion of
agreement.

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Transfer of
rights, &c.

2. All the rights, privileges and obligations of the Commissioners in, over or connected with the lands the purchase of which is provided for in the agreement shall be transferred and as from the date of the agreement be deemed to have been transferred from the Commissioners to the President, and any Act or Order conferring or imposing on the Commissioners any such right, privilege or obligation shall have effect and be deemed to have had effect as from the said date so far as the Act or Order relates to the said lands as if the President were therein substituted for the Commissioners.

Expenses of
Act.

3. Any expenditure incurred by the President under this Act and the agreement (including the amount of any costs payable by him) shall be paid out of moneys provided by Parliament.

Saving
powers of
President
and Com-
missioners.

4. The powers conferred on the President and the Commissioners by this Act shall be in addition to and not in derogation of any other powers of the President and the Commissioners.

Short title.

5. This Act may be cited as the *Air Ministry (Cattewater Seaplane Station) Act 1925.*

SCHEDULE.

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AN AGREEMENT made the 13th day of November, 1924, between THE CATTEWATER COMMISSIONERS, incorporated under a Provisional Order made in the 37th and 38th years of Her late Majesty Queen Victoria by the Board of Trade under the General Pier and Harbour Act, 1861, amended and confirmed by the Pier and Harbour Confirmation Act, 1876, “for
“ the construction, maintenance and regulation of a
“ Breakwater and Pier on the Batten Reef of Rocks
“ at the entrance of Cattewater, in the Port of
“ Plymouth, and of approach roads thereto, and of
“ the Harbour of Cattewater, in the County of
“ Devon,” and being also the undertakers for carrying into execution a Provisional Order of the Board of Trade made in 1915 and confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act, 1915 (hereinafter called “the Vendors” which expression shall include where the context so admits their successors and assigns), of the one part and THE PRESIDENT OF THE AIR COUNCIL (hereinafter called “the Purchaser,” which expression shall include where the context so admits his successors and assigns) of the other part.

1. The Vendors agree to sell and the Purchaser agrees to purchase for the sum of £15,000, First, all that piece or parcel of land with the dwelling-house erected on part thereof, being part or parcel of a messuage or tenement and hereditaments formerly called How Stert, otherwise Hoe Stert, but now and for many years known as Mount Batten, situate in the parish of Plymstock, in the county of Devon, and which said piece or parcel of land contains one acre, three roods, and 25 perches or thereabouts, and is with the boundaries thereof delineated and shown on the plan annexed hereto and thereon coloured green and yellow and purple. Secondly, all that piece or parcel or strip of land, being of the computed width of 50 feet throughout and extending to the length of 720 feet or thereabouts from the east edge of the piece of land first hereinbefore described in an easterly direction, and containing 3 roods, 12 poles, or thereabouts, which said

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2. The properties are sold subject to the following exceptions and reservations, that is to say :—

(a) As to such portion of the property first hereinbefore described as is coloured yellow on the said plan to a right of way granted to His Majesty's Principal Secretary of State for the War Department by an indenture dated the 5th day of May 1879, and made between the Vendors of the one part and the said Principal Secretary of the other part, and as to such portion of the property first hereinbefore described as is coloured purple on the said plan to an indenture of lease, dated the 31st day of December 1907, and made between the same parties :

(b) As to the properties secondly and thirdly hereinbefore described by virtue of an indenture of conveyance on sale, dated the 1st day of March 1878, from the then Earl of Morley to the Vendors, and an indenture of conveyance on sale, dated the 15th day of October 1923, from the present Earl of Morley to the Vendors to—

(i) The reservation in favour of the said respective Earls of Morley, their heirs and assigns of all mines

minerals, limestone and other stone, iron, clay and ochre within or under the said hereditaments with full power and liberty to search for and work the same mines, and to get, carry away and dispose of the said minerals, limestone and other stone, iron, clay and ochre, and to do all acts and things on or about the said hereditaments which shall be requisite or expedient for the purposes aforesaid, but, nevertheless, this power and liberty is to be exercised in such manner and so as not to break or interfere with the surface of the said lands or any part thereof, and not to render unfit for use or in anywise injure or damage any road or roads made by the Vendors on the said lands or any part thereof;

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(ii) A right of way for the said respective Earls of Morley, their lessees and tenants and all other persons authorised by them or either of them, and either with or without horses, waggons, carts or carriages, and in common with the Vendors and their assigns and all other persons authorised by them to pass and repass, over, along or across the said lands or any road made or which may be made thereon, but so as not to interfere with the use of any such road by the Vendors or their assigns or any person or persons authorised by them to use the same;

(iii) A covenant by the Vendors not without the previous consent of the said respective Earls of Morley and subject as therein provided to make any wall, bank or other fence between the said lands secondly and thirdly hereinbefore described, and the land of the said respective Earls of Morley on either side thereof adjoining thereto; and to

(iv) Certain rights (so far as now subsisting) for the said respective Earls of Morley to substitute other roads for the roads therein mentioned; and also

(v) By virtue of an agreement, dated the 18th day of November 1915, and made between the present Earl of Morley and the said Secretary of State to certain rights thereby granted to the said Secretary of State to lay and maintain cables, wires and other works :

(c) As to the property, fourthly hereinbefore described, to—

(i) A reservation unto the Personage for the time being entitled to the Duchy of Cornwall of all mines, minerals, stone and substrata lying within and under the said property at a greater depth from the surface

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than 10 fathoms, but without any right or power to enter upon, break or use the surface of the said property for the purpose of working, winning and getting the said excepted mines, minerals, stone and substrata; and to

(ii) All rights of the public or others over or in respect of the said breakwater or pier; and

(d) As to the property fifthly hereinbefore described subject to—

(i) Such restraints on the exercise of the right of building and other rights, incident to the ownership thereof as are now by virtue of the Defence Act, 1860, and a Declaration made by Her late Majesty's Principal Secretary of State for the War Department, pursuant to the provisions of the said Act, and dated the 31st day of August 1860, a copy whereof was deposited with the clerk of the peace for the county of Devon, or any subsequent statutory modifications thereof existing therein or applicable thereto; and to

(ii) A covenant not to use or permit the said property to be used for any purpose to which the owner or owners of the piece of land adjoining the said property on the north side thereof may reasonably object.

The property hereinbefore thirdly described is with other property let upon a lease, particulars of which are set out in the Schedule hereto, and is sold subject to and with the benefit of the said lease.

3. The Purchaser shall undertake all the obligations, statutory or otherwise, on the part of the Vendors to maintain the said breakwater or pier hereby agreed to be sold, and to exhibit and keep burning a light on the outer extremity of the harbour or such other places as may be required by the Admiralty and Trinity House or either of those authorities, and all other obligations of the Vendors in respect of the premises fourthly hereinbefore described, and shall indemnify the Vendors against the same.

4. The Purchaser shall pay the said purchase money to the Vendors or as they shall direct on the 29th day of September 1924, at the office of the Vendors' solicitor, Mr. Herbert Beechey Spencer, at Bank Street, Plymouth, at which time and place the purchase shall be completed.

5. All rents and profits will be received by the Vendors up to the day fixed for completion, as from which day all the said rents and profits shall belong to the Purchaser, and the said rents and profits shall, if necessary, be apportioned for the

purpose of this provision, but the Purchaser shall not be let into the actual possession or receipt of the said rents and profits, until the completion of the purchase, and the Purchaser shall, on completion, pay to the Vendors their proportion of the current rents. If from any cause whatever, other than the wilful default of the Vendors, the purchase shall not be completed on or before the day fixed for completion, the Purchaser shall pay to the Vendors, interest on the balance of the purchase money at the rate of £5 per centum per annum from that day until the completion of the purchase, and shall not be entitled to any compensation for the Vendors' delay or otherwise, but this stipulation is without prejudice to the Vendors' other rights under this contract.

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6. The title to the properties first and secondly hereinbefore described, shall commence with the said indenture of conveyance on sale dated the 1st day of March 1878, which was made between the Right Honourable Albert Edmund, Earl of Morley, of the first part, the Honourable Katherine Emily Parker, of the second part; the Right Honourable Harriet Sophia, Countess Dowager of Morley, of the third part; the said Countess Dowager and Augustus Granville Stapleton, of the fourth part; Mark Stephens Grigg, of the fifth part, and the Cattewater Commissioners, of the sixth part.

7. The title to the property thirdly hereinbefore described shall commence with the said conveyance on sale, dated the 15th day of October 1923, which was made between the Right Honourable Edmund Robert, Earl of Morley, of the one part, and the Cattewater Commissioners, of the other part. The last-mentioned conveyance and also the said conveyance of the 1st day of March 1878, were made pursuant to a contract, dated the 2nd day of November 1877, which will be produced to the Purchaser.

8. The title to the property fourthly hereinbefore described shall commence with a conveyance on sale, dated the 25th day of April 1878, and made between Albert Edward Prince of Wales, of the one part, and the Cattewater Commissioners, of the other part.

9. The title to the property fifthly hereinbefore described shall commence with a conveyance on sale, dated the 24th day of December 1874, and made between the Right Honourable Frederic Baron Blachford of the one part, and John Bayly of the other part.

10. Copies of the said conveyances of the 1st day of March 1878, and the 15th day of October 1923, and of the leases and tenancy agreements affecting any of the said premises have been furnished to the purchaser, and the original conveyances

A.D. 1925. will be handed over on completion, and may be inspected at the office of the Vendors' solicitor at any time within 10 days previously thereto, and the Purchaser (whether availing himself of such opportunity of inspection or not) shall be deemed to have full notice of the contents of all such documents and the nature and extent of the terms of the tenancies, notwithstanding any partial, incomplete, or inaccurate statement of such contents, or of the effect thereof.

11. The Vendors shall not be required to furnish any evidence of the identity of the properties to be sold with any former description of such properties beyond what may be afforded by the muniments themselves, nor to reconcile differing descriptions, but the Purchaser shall be furnished, at his own expense, if he so requires, with a statutory declaration by some competent person on behalf of the Vendors that the property has for the period of 20 years last past been held and enjoyed in accordance with the title shown thereto.

12. On payment of the purchase money the Purchaser shall be entitled to a proper assurance of the properties from the Vendors and all other necessary parties (if any), such assurance and every other instrument, act and thing which shall be required by the Purchaser for getting in or releasing any outstanding estate, right or interest, or for completing the Vendors' title or for any other purpose to be prepared, obtained, made and done by, and at the expense of the Purchaser.

13. The Purchaser undertakes to obtain at his own expense the assent of the Admiralty, Board of Trade, Minister of Transport and any other public authority necessary or requisite to enable this sale to be carried out.

14. Within 21 days after the delivery of the abstract the Purchaser shall furnish to the Vendors' solicitor a statement in writing of his objections and requisitions (if any) arising on the abstract and this contract, and within 14 days after the delivery of the Vendors' replies thereto the Purchaser shall furnish to the Vendors' solicitor a statement in writing of his further objections or requisitions (if any) arising on such replies; and every objection or requisition not so stated shall be considered as waived. For the purpose of this condition an abstract shall be deemed perfect if it supply the information suggesting the objection or requisition although otherwise defective, and if no objection or requisition is so stated the title shall be considered as accepted, and in these respects time shall be deemed of the essence of the contract.

15. If the Purchaser shall make and insist on any objection or requisition either as to title, conveyance or any matter appearing on the abstract or this contract which the Vendors

shall be unable or unwilling to remove or comply with, the Vendors shall, notwithstanding any previous negotiation or litigation, be at liberty, on giving to the Purchaser not less than 10 days' notice in writing, to annul the sale, in which case, unless the objection or requisition shall have been in the meantime withdrawn, the sale shall at the expiration of the notice be annulled, but nothing herein contained shall prevent the Purchaser exercising any power conferred upon him by statute, Order in Council, or otherwise, in accordance with statute, in so far as this agreement fails to take effect.

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16. The property is believed, and shall be taken to be correctly described as to quantity or otherwise, and is sold subject to all chief, quit and other rents and outgoings, and to all incidents of tenure, rights of way, and other rights and easements (if any) affecting the same, and if any error, mis-statement or omission shall be discovered herein the same shall not annul the sale, nor shall any compensation be allowed by the Vendors in respect thereof.

17. The Vendors shall (if required) in the conveyance to the Purchaser release to the Purchaser all or any rights of pre-emption which are or might for the time being be exercisable in respect of the property hereby agreed to be sold, or any part thereof to the intent that the said property and every part thereof shall be discharged in perpetuity from all such rights of pre-emption.

18. The Purchaser hereby agrees that he will forthwith at his own expense apply for and use his best endeavours to obtain an Act of Parliament confirming this contract on behalf of the Purchaser and the Vendors, and for this purpose will introduce a Bill at the earliest possible moment in the next session of Parliament, which Bill shall be proceeded with by the Purchaser with the utmost expedition, and this agreement, except in so far as the property hereinbefore fifthly described is concerned, is conditional upon such an Act of Parliament being obtained before the 31st day of December 1925. In the event of an Act of Parliament as aforesaid not being obtained, the Purchaser shall grant to the Vendors a right of way in perpetuity on foot and for horses, carts, carriages and motors in, along and over the said property hereinbefore fifthly described.

19. The Purchaser shall pay all the legal costs and expenses incurred by the Vendors in connection with the preparation and execution of this contract and in connection with the deduction of title to the properties sold and the conveyance and completion of sale to the Purchaser in accordance with Schedule I, Part I, of the General Order made in pursuance of the Solicitors' Remuneration Act, 1881, and the reasonable costs and expenses of the surveyor of the Vendors.

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20. Inasmuch as the Vendors are and will remain the harbour authority in respect of the Cattewater Harbour the following additional provisions shall have effect, but without prejudice to the contention of the Purchaser that aircraft belonging to the Purchaser are and always have been exempt from all harbour dues and liability to make such returns as are mentioned in sub-clause (ii) of this clause, or to the rights (if any) of the Purchaser to cease at any time to make such returns and to recover any payments made under the provisions of sub-clause (iii) of this clause :—

- (i) The Purchaser shall pay to the Vendors upon the execution of this contract the sum of 1,000*l.* in full satisfaction of all claims by the Vendors for the user of the said harbour by the Purchaser or any other Government department as a seaplane station up to the 24th day of June last ;
- (ii) The Purchaser shall henceforth furnish to the Vendors such returns in respect of user of the said harbour by aircraft belonging to the Purchaser as they are entitled to receive under their statutory powers in respect of user of the said harbour by privately owned aircraft and such returns shall be made in a form similar to the returns heretofore made by the Admiralty ;
- (iii) The Purchaser will pay to the Vendors all rates or dues in respect of the user of the said harbour by aircraft belonging to the Purchaser as from the 24th day of June 1924, on the same footing as payments heretofore made by the Admiralty in respect of Admiralty craft.

As witness the common seal of the Vendors and the hand of the Purchaser.

The SCHEDULE above referred to.

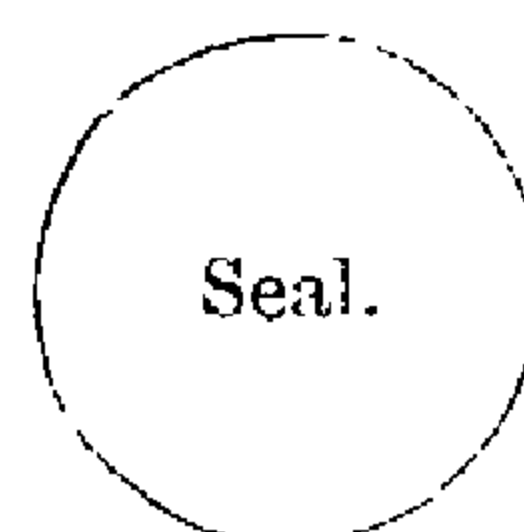
The property thirdly above described is, with the Castle Inn, Mount Batten, and about 17½ acres of land let by and is sold subject to and with the benefit of an indenture of lease dated the 23rd day of December 1900, and made between the Earl of Morley, of the one part, and the Octagon Brewery Company, Limited, of the other part, being a lease to the brewery company for a term of 30 years from the 24th day of December 1900 at the annual rent of 60*l.* This rent is divisible as follows, namely, 30*l.* per annum for the Castle Inn, and 30*l.* per annum for the

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land. The lease contains a proviso enabling the lessor to determine on 12 months' notice the lessee's tenancy of any portion of the land, in which case the lessees are entitled to a proportionate abatement of rent according to the quantity of land possession of which is so resumed.

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The COMMON SEAL of the CATTEWATER
COMMISSIONERS was hereunto affixed
in the presence of



HAROLD ALGER, Chairman.
H. B. SPENCER, Clerk.

Signed by Sir W. F. Nicholson, K.C.B.,
Secretary of the Air Ministry on
behalf of the Air Council in the
presence of } W. F. NICHOLSON.

J. D. PROPER,
Private Secretary,
Air Ministry.

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